DVT | MASTER SERVICE AGREEMENT + SLA

Integrated Cloud Storage, Website Development & Managed Digital Services | Website Acceptance Draft | Version 2.0

1. Parties, Acceptance and Priority

This Master Service Agreement and Service Level Agreement (Agreement) governs services supplied under the DVT brand by [LEGAL ENTITY / PROPRIETOR NAME, ADDRESS] (DVT) to the accepting customer (Customer). By signing an order or actively ticking an unticked acceptance checkbox before purchase/activation, Customer accepts the version presented. DVT will retain the version, timestamp, account ID and reasonable acceptance evidence. A mutually signed statement of work (SOW)/order prevails for its specific scope, followed by this Agreement and applicable service schedules. A separate Privacy Notice applies.

2. Services and Scope

Services may include cloud/file backup, NAS and off-site storage, CCTV archive, recovery, website design/development, web or mobile applications, hosting, domain and professional email administration, maintenance, SEO, social-media management, content creation, advertising, digital campaigns, integrations, grievance portals and related IT support. Only items, milestones, capacities, accounts, channels and deliverables expressly listed in the accepted SOW/plan are included. All other work requires a written change order.

3. Project Delivery and Customer Cooperation

The SOW shall specify deliverables, dependencies, timeline, acceptance tests, revision rounds, fees and support period. Customer must provide timely lawful content, credentials, brand assets, approvals and feedback. Timelines extend reasonably for Customer delays or third-party approvals. DVT will offer a reasonable correction period for material nonconformity reported within [7/14] days of delivery; silence alone does not automatically waive statutory rights. Extra revisions and new features are separately quoted.

4. Websites, Apps and Intellectual Property

Customer owns its pre-existing materials and content. Upon full payment, Customer receives ownership of specifically identified bespoke final deliverables to the extent DVT is legally entitled to transfer them; DVT retains pre-existing code, reusable libraries, methods, templates and tools, licensed to Customer as needed to operate the delivered solution. Open-source and third-party components remain under their own licences. Source-code repository access, editable design files, deployment documentation and transfer of domain/cloud accounts must be specified in the SOW; otherwise no implied transfer of third-party licences. Customer warrants it has rights to supplied logos, photos, text and media.

5. Social Media, Advertising and Content Approval

Customer retains ownership/control of its social pages, ad accounts, pixels and business profiles and should grant DVT role-based access rather than passwords. Customer is responsible for truthful claims, lawful promotions, consent to use images/testimonials, political/election advertising permissions where applicable, and final approval of posts/ads. DVT may use approved freelancers and tools under confidentiality and security obligations. Ad spend, boosts, creator fees, stock media, subscriptions and platform charges are separate unless expressly included. Reach, leads, sales, ranking, verification and account approval are not guaranteed. Platform moderation, API limits, suspensions and policy changes may affect delivery; DVT will assist reasonably but cannot override platform decisions.

6. Hosting, Domain, Email and Third Parties

Domain, VPS/private cloud, Vercel, databases, storage, DNS, Google Workspace, transactional email, SMS/WhatsApp, payment gateways and platform APIs may be supplied by third parties under their terms. The SOW must state who owns each account, who pays renewals, usage caps, data location and handover access. “First year included” means only the documented resource allowance and term; scaling, overages, renewals, premium APIs and taxes may be charged separately after notice/approval as specified in the order. No unlimited traffic or absolute security is promised.

7. Storage, Backup and CCTV Schedule

Customer retains ownership of uploaded data and authorises DVT and approved providers to process it solely to deliver and secure purchased services. Capacity, users/devices, backup frequency, retention, snapshots, immutability and restore assistance are plan-limited. Customer must identify correct sources, maintain access and periodically test recovery; independent backup is recommended for critical data. CCTV sizing depends on camera count, bitrate, hours and retention; equipment, electricity or local connectivity failures may interrupt capture. Exceeding quotas may result in notified additional charges or upload restrictions. Lost customer-controlled encryption keys may make recovery impossible.

8. Privacy, Security and Incident Response

Each party shall comply with applicable Indian law, including the IT Act and DPDP Act/Rules as provisions become applicable. The Customer is responsible for lawful collection, notices/consents and citizen-facing privacy information for its portal; DVT will follow documented processing instructions where acting as a processor. Parties will agree any necessary data-processing addendum, breach notification contacts and lawful retention/deletion schedule. DVT applies reasonable plan-appropriate controls such as TLS, least privilege, MFA, logging, backups and vulnerability management; no service is completely secure. Security incidents will be escalated without undue delay, with statutory reporting responsibilities allocated by law and the SOW.

9. Service Levels and Support

For paid storage plans expressly carrying the SLA, DVT targets 99.5% monthly availability of the DVT-controlled access layer, excluding planned maintenance and events outside reasonable control. Unless otherwise agreed, acknowledgement targets are: critical 4 business hours; high 8 business hours; normal 1 business day. These are response targets, not fixed repair deadlines. Website/app bug support lasts one year where included, covering reproducible defects in agreed deliverables, not enhancements, user-caused issues, unsupported changes or third-party outages. No RPO/RTO, search ranking, ad results or service credits apply unless expressly stated in the SOW.

10. Fees, Changes, Suspension and Refunds

Setup, development, milestone, subscription, hosting, advertising, API, storage, overage and support charges are governed by the order; GST and statutory charges apply where required. Approved milestone work and consumed third-party charges are ordinarily non-refundable to the extent lawful; unperformed prepaid work is reconciled on cancellation under the SOW and applicable law. DVT may pause affected services after reasonable notice for overdue undisputed fees, unlawful use or material security risk. Scope changes require written approval of price and timeline. Pricing changes affect future periods with reasonable notice.

11. Acceptable Use and Confidentiality

Customer must not upload unlawful, infringing, abusive or malicious material or misuse systems, data or messaging channels. Each party will protect the other party's confidential non-public information with reasonable care and disclose it only to authorised personnel/providers or where legally required. DVT may restrict affected services where necessary to prevent material harm, subject to notice where feasible.

12. Termination, Data Export and Handover

Either party may terminate as provided in the SOW or for uncured material breach following reasonable notice, except urgent legal/security cases. Customer should export data before expiry. For storage services, unless the order or law states otherwise, recoverable data may remain for up to 30 days after termination and then be deleted from active systems, with backups expiring on normal cycles. Website/domain/source-code handover depends on the ownership and paid deliverables defined above; reasonable migration work may be separately charged. DVT shall not deliberately withhold legally owned Customer Data solely to coerce payment.

13. Warranties, Liability and Indemnity

DVT will perform with reasonable skill and care, but does not warrant uninterrupted service, perfect cyber protection, particular business outcomes or permanent availability of third-party platforms. To the extent permitted by law, neither party is liable for indirect/consequential loss. DVT's aggregate contractual liability for the affected service is limited to fees paid or payable for that service in the preceding six months, except liabilities that cannot legally be limited and any additional exceptions agreed in a signed SOW. Customer is responsible for claims caused by its unlawful content, instructions or rights violations; DVT remains responsible for its own unlawful conduct or contractual breach.

14. Law, Notices and Updates

Indian law governs. Parties will first attempt written resolution in good faith; subject to mandatory consumer and other jurisdiction rules, competent courts in Mumbai, Maharashtra shall have jurisdiction. Notices may be delivered to registered account emails or the customer portal. Material changes to these terms will be notified reasonably and renewed acceptance obtained when legally or contractually necessary.

15. Contact and Publication Fields

DVT legal name: [INSERT] | Registered/business address: [INSERT] | Support email: [INSERT] | Privacy/grievance contact: [INSERT] | Billing contact: [INSERT] | Website: [INSERT] | GSTIN (if applicable): [INSERT] | Effective date: [INSERT] | Version: 2.0. Publish a separate Privacy Notice, Cookie Notice if applicable, Refund/Cancellation Policy and plan-specific SOW/Service Schedule.

Website Acceptance Text

[ ] I have read and agree to the DVT Master Service Agreement (including applicable MSA/SLA service schedules) and acknowledge the Privacy Notice. The checkbox must be unchecked by default and linked to the full documents. Record acceptance version, time and customer identifier.

Reference and Legal Review Note

Draft informed by the supplied DVT Storage MSA/SLA (v1.0), the Government of India DPDP Act/Rules materials, and publicly available cloud-provider contract structures for service terms, acceptable use, data processing and SLAs. This is an original condensed template, not a reproduction of provider terms. Indian counsel should verify the legal entity, liability cap, refund rules, statutory applicability, political-advertising obligations, cross-border transfers and final service schedules before publication.